

		The Motion is DENIED. Plaintiff to give notice.
111	Quick Bridge Funding, LLC vs. Workhorse Cabinetry, LLC 26-01545535	1) Motion for Summary Judgment and/or Adjudication 2) Case Management Conference Plaintiff Quick Bridge Funding, LLC moves for summary judgment on its Complaint against Defendants Workhorse Cabinetry, LLC and Jeanette Carey. For the following reasons, the motion is GRANTED. A plaintiff moving for summary judgment “bears the burden of persuasion that ‘each element of’ the ‘cause of action’ in question has been ‘proved,’ and hence that ‘there is no defense’ thereto. [Citation.]” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850; Code Civ. Proc. § 437c, subd. (p)(1).) “Once the plaintiff ... has met that burden, the burden shifts to the defendant ... to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. The defendant ... may not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.” (Code Civ. Proc. § 437c, subd. (p)(1).) The Complaint asserts causes of action for 1) breach of contract; and 2) breach of guaranty. The elements of breach of contract/guaranty are (1) existence of the contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach; and (4) damages to plaintiff as a result of the breach.” (Miles v. Deutsche Bank National Trust Company (2015) 236 Cal.App.4th 394, 402.)

		Plaintiff establishes the existence of a contract, specifically, the Loan Agreement and Guaranty. (Otero Decl. ¶¶ 4-5, Exh. 1.) Plaintiff submits evidence that it performed its obligations under the contract. (Otero Decl., ¶ 9.) Plaintiff additionally submits evidence that Defendants breached the contract and guaranty. Specifically, Otero states that on 11/12/25, Defendants defaulted by failing to make the payment due. (Otero Decl., ¶ 6.) Based on Defendants' breach, the entire unpaid balance of \$39,977.41 became due and payable from Defendants to Quick Bridge. (Otero Decl., ¶ 6.) Defendants have failed to pay the amount due under the agreements. (Otero Decl., ¶ 7.) Plaintiff meets its burden as the moving party to produce admissible evidence on each element of its causes of action entitling it to summary judgment. (CCP § 437c(p)(1).) Defendants do not oppose the motion and thus do not establish the existence of any triable issues of material fact. As a result, the motion for summary judgment is granted. Plaintiff to give notice and to prepare a proposed judgment.
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